

SOLVED PRACTICE WORKBOOK

State Legislature - Solved Practice Workbook

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

State Legislature	
RELEVANT EDUCATION RESOURCES – BOOKS/CASE STUDIES	
01. CONSTITUTIONAL ARCHITECTURE: NO UNIFORM STATE LEGISLATURE Article 168 creates Governor plus Assembly combination or	02. ARTICLE 168: CREATION OR ABOLITION OF A LEGISLATIVE COUNCIL Article 168 requires an Assembly with membership majority plus
03. LEGISLATIVE ASSEMBLY: POPULAR CHAMBER AND CONFIDENCE CHAMBER Articles 170, 171 and 174(2) link electoral election to the	04. LEGISLATIVE COUNCIL: COMPOSITION AND REPRESENTATIONAL LOGIC Article 171 fixes a maximum size (150 Assembly seats, minimum forty
05. DURATION: DISSOLUTION VERSUS CONTINUITY Article 172 gives an Assembly five years unless sooner dissolved and	06. QUALIFICATIONS, OATH AND DISQUALIFICATION Articles 173, 174 and 175 require entry, oath, vacancy
07. SESSIONS, PROROGATION AND DISSOLUTION Article 174 links the inter-session gap and distinguishes prorogation	08. GOVERNOR'S ADDRESS AND MESSAGES Articles 175-177 govern address, messages, the annual or
09. PRESIDING OFFICERS: OFFICES AND CONTINUITY Articles 178-180 govern election, vacancy, resignation, removal, acting	10. IMPARTIALITY AND THE SPEAKER PROBLEM Khanolkar, Kothari, Subbarao Desai and P. V. Rao's 1954 study found
11. QUORUM, VOTING AND VACANCIES Article 180 gives the presiding officer a casting vote and supplies a	12. PRIVILEGES AND FREEDOM OF SPEECH Article 186 immunity is function-linked and remains subject to Dis
13. ORDINARY BILLS IN A UNICAMERAL STATE Articles 186 and 188 govern introduction, passage, lapse, prorogation	14. ORDINARY BILLS IN A BICAMERAL STATE Article 187 permits a three-month first delay and one-month second
15. MONEY BILLS: ASSEMBLY MONOPOLY Articles 188-190 and 207 require Assembly introduction or	16. GOVERNOR'S ASSENT UNDER ARTICLES 200-201 Articles 200-201 create distinct gubernatorial and presidential choices
17. ANNUAL FINANCIAL STATEMENT AND DEMANDS FOR GRANTS Articles 202-204 govern the annual financial statement, charged	18. FINANCIAL BILLS AND RECOMMENDATION Clause 1 restricts fiscal/financial matter Bills to recommended
19. LEGISLATIVE ACCOUNTABILITY DEVICES House rules operationalise information devices, censure tools and the	20. COMMITTEES AND SCRUTINY PAC, Estimates, Public Undertakings and State-specific subject
21. ANTI-DEFECTION INSIDE THE STATE HOUSE Khanolkar, Rao Nani, Rajendra Singh Rana, Kothari, Subbarao Desai and	22. LEGISLATIVE COUNCIL VERSUS RAJYA SABHA Article 168 optionally and Article 169 substantiation contrast with the
23. LEGISLATIVE COUNCIL: CASE FOR AND AGAINST Articles 169, 171 and 187-188 frame the case for and against a	24. STATE LEGISLATIVE PERFORMANCE AND THE SCRUTINY DEFICIT Articles 169-172 provide formal control, but institutional capacity
25. WOMEN'S RESERVATION, DELIMITATION AND STATE ASSEMBLIES The 84th and 106th amendments correct seat misalignment and	26. ARTICLES 208-212: PROCEDURE, LANGUAGE AND JUDICIAL RESTRAINT Articles 209-212 cover rules, financial business regulation, language
27. FULL ARTICLES 168-212 RAPID MAP The sequence covers composition, duration, membership, sessions,	

Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

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State Legislature - Solved Practice Workbook

BASIC MCQS / REMEDIATION

Original MCQ loop - strict A -> B -> C -> D rotation

OM1. State bicameralism

Which statement is correct?

A. Every State has an Assembly, while only specified States have a Council. B. Parliament alone may initiate a Council without State action. C. The Governor is outside the State legislature. D. Every State must have two Houses.

Answer: A.

Explanation: [FACT] Article 168 requires an Assembly in every State; Councils are optional.

OM2. Article 169

Parliament may create a Council after:

A. a simple-majority Council resolution. B. an Assembly special-majority resolution. C. presidential reference to the Supreme Court. D. ratification by half the States.

Answer: B.

Explanation: [FACT] The Assembly initiates through the prescribed special majority.

OM3. Parliamentary majority

The Article 169 law is passed by Parliament:

A. by two-thirds of total membership. B. only in a joint sitting. C. as an ordinary law by simple majority. D. only after State ratification.

Answer: C.

Explanation: [FACT] It is not treated as an Article 368 amendment.

OM4. Council strength

The Council's strength is ordinarily:

A. at least 60. B. fixed by the Governor. C. exactly half the Assembly. D. not more than one-third of Assembly strength and not below 40.

Answer: D.

Explanation: [FACT] Article 171 supplies both limits.

OM5. Local bodies

Approximately what share of a Council is elected by local authorities?

A. One-third. B. One-sixth. C. One-twelfth. D. Two-thirds.

Answer: A.

Explanation: [FACT] Local authorities elect one-third.

OM6. Graduates

Graduates elect:

A. one-third. B. one-twelfth. C. half. D. one-sixth.

Answer: B.

Explanation: [FACT] The graduate and teacher categories each elect one-twelfth.

OM7. Governor nominations

The Governor nominates:

A. all teacher members. B. one-third of the Assembly. C. one-sixth of the Council. D. one-twelfth of the Council.

Answer: C.

Explanation: [FACT] One-sixth is nominated for specified knowledge or experience.

OM8. Council duration

Which is correct?

A. Half retires every three years. B. Council dissolves with the Assembly. C. Council has a five-year collective term. D. Council is permanent and one-third retires every two years.

Answer: D.

Explanation: [FACT] Individual members ordinarily serve six years.

OM9. Minimum age

Minimum age for Assembly membership is:

A. 25. B. 30. C. 35. D. 21.

Answer: A.

Explanation: [FACT] Assembly 25; Council 30.

OM10. Assembly term

The normal Assembly term is:

A. permanent. B. five years unless sooner dissolved. C. six years. D. four years.

Answer: B.

Explanation: [FACT] Article 172 sets five years.

OM11. Quorum

State House quorum is:

A. one-fifth. B. one-tenth, with no minimum. C. until the State Legislature otherwise provides by law, ten members or one-tenth, whichever is greater. D. exactly ten in every House.

Answer: C.

Explanation: [FACT] Article 189 supplies this default while permitting the State Legislature to provide otherwise by law.

OM12. Casting vote

The presiding officer:

A. cannot vote in a tie. B. has two ordinary votes. C. always votes first. D. ordinarily has no first vote but has a casting vote on equality.

Answer: D.

Explanation: [FACT] Article 189 provides the casting vote.

OM13. Speaker after dissolution

On Assembly dissolution, the Speaker:

A. continues until immediately before the first meeting of the new Assembly. B. becomes Governor. C. vacates immediately. D. continues for six months regardless of the new House.

Answer: A.

Explanation: [FACT] Article 179 preserves continuity.

OM14. Speaker removal

Removal requires:

A. Governor's order. B. majority of all then members after 14 days' notice. C. simple majority of those present without notice. D. two-thirds of total membership.

Answer: B.

Explanation: [FACT] The effective-majority rule and notice apply.

OM15. Defection adjudicator

Tenth Schedule State-member disqualification is initially decided by:

A. High Court. B. Governor on ECI advice. C. Speaker or Chairman. D. Chief Minister.

Answer: C.

Explanation: [FACT] The presiding officer decides, subject to judicial review.

OM16. Article 192

For a non-defection Article 191 disqualification question, the Governor:

A. acts personally without advice from any institution. B. sends it to Parliament. C. refers it to the Speaker. D. obtains and acts according to the Election Commission's opinion.

Answer: D.

Explanation: [FACT] Article 192 provides this route.

OM17. Ordinary Bill delay

Maximum Council delay across Article 197 stages is approximately:

A. four months. B. six months. C. one year. D. fourteen days.

Answer: A.

Explanation: [FACT] Three months plus one month.

OM18. Joint sitting

For disagreement between State Houses:

A. President chairs a joint sitting. B. no constitutional joint sitting exists. C. Governor always calls a joint sitting. D. Supreme Court resolves amendments.

Answer: B.

Explanation: [FACT] Assembly preference prevails through Article 197.

OM19. Money Bill introduction

A State Money Bill may be introduced:

A. only in the Council. B. in either House. C. only in the Assembly. D. only in Parliament.

Answer: C.

Explanation: [FACT] The Assembly has initiation monopoly.

OM20. Council on Money Bill

The Council:

A. can amend conclusively. B. can reject permanently. C. has three months. D. may recommend within 14 days.

Answer: D.

Explanation: [FACT] Assembly may accept or reject recommendations.

OM21. Money Bill certificate

Who certifies a State Money Bill?

A. Assembly Speaker. B. Advocate General. C. Governor. D. Council Chairman.

Answer: A.

Explanation: [FACT] Article 199 assigns the Speaker.

OM22. Confidence

The State Council of Ministers is collectively responsible to:

A. the Governor personally. B. the Legislative Assembly. C. the Legislative Council. D. both Houses equally.

Answer: B.

Explanation: [FACT] Article 164(2) establishes Assembly responsibility.

OM23. Demands for grants

Demands for grants are voted by:

A. the Council alone. B. the Governor. C. the Assembly alone. D. both Houses.

Answer: C.

Explanation: [FACT] The power of the purse follows the confidence chamber.

OM24. Charged expenditure

Charged expenditure:

A. requires a joint sitting. B. is neither discussed nor voted. C. is voted only by Council. D. may be discussed but is not voted.

Answer: D.

Explanation: [FACT] Article 203 preserves discussion but excludes voting.

OM25. Article 200 return

The Governor may return for reconsideration:

A. a non-Money Bill. B. a demand for grant. C. a constitutional amendment Bill. D. a Money Bill only.

Answer: A.

Explanation: [FACT] A Money Bill cannot be returned under Article 200.

OM26. Mandatory reservation

Reservation for the President is mandatory where a Bill:

A. changes House rules. B. endangers the constitutional position of the High Court by derogating from its powers. C. alters a municipal boundary. D. creates a Council.

Answer: B.

Explanation: [FACT] The second proviso to Article 200 controls.

OM27. Article 201

After a reserved non-Money Bill is returned and repassed:

A. Governor must enact it without presentation. B. President must assent. C. presidential assent is not constitutionally compelled. D. it becomes law automatically.

Answer: C.

Explanation: [FACT] Article 201 differs from the direct Article 200 return loop.

OM28. Assent status

The November 2025 advisory opinion supports:

A. rigid judicial timelines in every case. B. absolute non-justiciability of inaction. C. automatic deemed assent after one month. D. limited review of prolonged unexplained inaction without deemed assent.

Answer: D.

Explanation: [CURRENT] Courts may direct action but cannot invent assent.

OM29. Privilege

Article 194 primarily protects:

A. member speech and votes in the House/committees. B. every private act of a legislator. C. the Governor as a House member. D. all party communications.

Answer: A.

Explanation: [FACT] Privilege is function-linked.

OM30. Article 212

Article 212 bars courts from questioning proceedings merely for:

A. lack of legislative competence. B. procedural irregularity. C. mala fides. D. violation of Fundamental Rights.

Answer: B.

Explanation: [FACT] Substantive constitutional review remains possible.

OM31. Women's reservation

The 106th Amendment reservation applies to:

A. Rajya Sabha and Councils. B. every nominated seat. C. Lok Sabha and State Legislative Assemblies, subject to activation conditions. D. Legislative Councils only.

Answer: C.

Explanation: [FACT/CURRENT] It does not cover Councils and is not operational yet.

OM32. Delimitation trigger

Which is accurate as of 28 August 2026?

A. The failed 2026 Bills are law. B. Delimitation automatically occurred on 1 January 2026. C. Women's reservation already applies to all Assembly elections. D. Publication of the relevant post-2026 census figures and delimitation remain pending.

Answer: D.

Explanation: [CURRENT] Census and delimitation dates remain unresolved.

OM33. Rajya Sabha comparison

Unlike a Council, Rajya Sabha:

A. has federal representation and special Articles 249/312 powers. B. is optional. C. is directly elected by citizens. D. may be abolished by Article 169 law.

Answer: A.

Explanation: [FACT] The Council has no equivalent federal power.

OM34. Governor's special address

Article 176 requires it:

A. only during emergency. B. after each general election and at the first session of each year. C. only in bicameral States. D. before every sitting.

Answer: B.

Explanation: [FACT] These are the two constitutional occasions.

OM35. Assembly dissolution and Bills

Which statement is generally correct?

A. Council Bills always become law. B. Money Bills transfer to Parliament. C. Bills pending in or passed by the Assembly at relevant stages may lapse on dissolution. D. Every Bill survives dissolution.

Answer: C.

Explanation: [FACT] Lapse analysis depends on House and stage.

OM36. Council verdict

The most accurate constitutional description is:

A. permanent veto chamber. B. co-equal federal chamber. C. confidence chamber. D. optional, permanent and mainly suspensive/advisory chamber.

Answer: D.

Explanation: [ANALYSIS] This captures Article 169 status and Articles 197-199 weakness.

Remedial MCQs - strict A -> C -> A -> D rotation

R1. Bicameral-State trap

Which is currently bicameral?

A. Karnataka. B. Tamil Nadu. C. Odisha. D. Rajasthan.

Answer: A.

Remedy: Use KATBUM.

R2. Article 169 trap

The Assembly resolution uses:

A. unanimous vote. B. total-membership majority plus two-thirds present and voting. C. simple majority only. D. half-State ratification.

Answer: B.

Remedy: Special Assembly resolution, ordinary parliamentary law.

R3. Composition trap

Teachers elect:

A. one-third. B. half. C. one-twelfth. D. one-sixth.

Answer: C.

Remedy: 1/3 - 1/12 - 1/12 - 1/3 - 1/6.

R4. Council power trap

On an ordinary Bill, Council ultimately:

A. sends it to Supreme Court. B. has absolute veto. C. forces a joint sitting. D. can delay but not defeat Assembly preference.

Answer: D.

Remedy: Three months plus one month; no State joint sitting.

R5. Speaker trap

The Assembly Speaker after dissolution:

A. continues until immediately before the new Assembly's first meeting. B. vacates instantly. C. becomes caretaker Chief Minister. D. continues for a fixed six years.

Answer: A.

Remedy: Continuity is an explicit Article 179 exception.

R6. Quorum trap

Correct quorum:

A. ten or one-tenth, whichever is smaller. B. until altered by State law, ten or one-tenth, whichever is greater. C. one-tenth only. D. twenty in every House.

Answer: B.

Remedy: Remember both the default ten-member floor and the opening legislative-variation clause.

R7. Disqualification trap

Non-defection Article 191 disputes go to:

A. President. B. Speaker without review. C. Governor acting according to ECI opinion. D. Chief Minister.

Answer: C.

Remedy: Article 192 differs from the Tenth Schedule.

R8. Privilege trap

Article 194:

A. bars all judicial review. B. protects every criminal act. C. makes Governor a House member. D. protects member speech/votes in legislative functions.

Answer: D.

Remedy: Privilege is member- and function-specific.

R9. Money Bill trap

Council may:

A. recommend within 14 days. B. veto permanently. C. certify it. D. amend conclusively.

Answer: A.

Remedy: Speaker certifies; Assembly decides recommendations.

R10. Confidence trap

No-confidence is effective in:

A. Governor's office. B. Assembly only. C. either House. D. Council only.

Answer: B.

Remedy: Collective responsibility is to the Assembly.

R11. Reservation trap

Women's reservation presently covers constitutionally:

A. Councils only. B. every House immediately. C. Lok Sabha and Assemblies, but activation remains pending. D. Rajya Sabha only.

Answer: C.

Remedy: Separate constitutional provision from operational implementation.

R12. Article 212 trap

Courts remain able to review:

A. no legislative matter. B. every minor procedural error. C. only Council composition. D. substantive constitutional illegality despite Article 212.

Answer: D.

Remedy: Procedural irregularity is not substantive illegality.

PYQS AND ANSWER PRACTICE

Verified routed Mains PYQs

PYQ 1 - UPSC GS-II 2021, Q14 - direct owner

Verified neutral demand: Explain the constitutional provisions for Legislative Councils and review their working. **15 marks | 250 words**

Demand decoding

- "Explain" requires Articles 169 and 171 plus legislative powers.
- "Review" requires a judgement on actual utility and weakness.
- A complete answer must compare the Council with the Assembly and Rajya Sabha.

Model answer

Claim: [FACT] A Legislative Council is an optional, permanent and structurally subordinate second chamber. Its constitutional purpose is reconsideration and wider representation, not equality with the Assembly.

Named evidence: Under Article 169, an Assembly initiates creation or abolition through a total-membership majority plus two-thirds present and voting; Parliament then enacts an ordinary law, which is not an Article 368 amendment. Article 171 limits strength to one-third of the Assembly with a minimum of 40 and distributes membership among local authorities, graduates, teachers, MLAs and Governor-nominated experts. Five-sixths are indirectly elected through STV and one-sixth nominated. Councillors serve six years, with one-third retiring every two years.

Working and analysis: Articles 197-199 make the Council weak. It may delay an ordinary Bill for about four months but cannot veto it; on a Money Bill it can only recommend within 14 days. It neither votes grants nor removes the ministry, which is responsible only to the Assembly. Unlike the Rajya Sabha, it has no federal or Article 249/312-type special power.

Review: It can check haste, preserve continuity and include local/expert voices. Yet dated occupational constituencies, indirect election, cost and patronage create the "ornamental chamber" criticism.

Qualification and verdict: [LIMIT] Utility varies by State and political composition. Councils should be retained where they produce independent scrutiny, but their electorates, nominations and committee work need reform; where they merely duplicate the Assembly, Article 169 abolition remains constitutionally legitimate.

Examiner comment: Do not stop after composition. "Working" demands Articles 197-199, confidence/finance weakness and a reviewed conclusion.

Evidence chain: Article 169 -> Article 171 -> permanence -> Articles 197-199 -> Assembly confidence -> Rajya Sabha comparison -> reform.

Why this earns marks: It answers provision and performance, uses precise fractions and timelines, supplies counter-arguments and ends with a conditional verdict.

How to improve this answer: Compress the Article 171 fractions into one line, devote a separate paragraph to Articles 197-199, and end with a State-specific retain-reform-abolish test rather than a generic defence of bicameralism.

Demand decoding: The directive **answer** requires a direct position on "PYQ 1 - UPSC GS-II 2021, Q14 - direct owner", all clauses, a sociological mechanism, historical trajectory, intersectional and regional variation, named Indian evidence, constitutional/institutional boundaries and a qualified conclusion.

Detailed examiner-grade model answer:

Introduction and thesis: The answer must resolve the sociological demand in "PYQ 1 - UPSC GS-II 2021, Q14 - direct owner".

Analytical body:

1. **Claim and named evidence:** Verified neutral demand: Explain the constitutional provisions for Legislative Councils and review their working. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
2. **Claim and named evidence:** "Explain" requires Articles 169 and 171 plus legislative powers. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope,

correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

3. **Claim and named evidence:** "Review" requires a judgement on actual utility and weakness. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
4. **Claim and named evidence:** A complete answer must compare the Council with the Assembly and Rajya Sabha. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
5. **Claim and named evidence:** Claim: [FACT] A Legislative Council is an optional, permanent and structurally subordinate second chamber. Its constitutional purpose is reconsideration and wider representation, not equality with the Assembly. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: The answer must resolve the sociological demand in "PYQ 1 - UPSC GS-II 2021, Q14 - direct owner".

Executable exam-length answer / compression plan: For a 15-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise five points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

PYQ 2 - UPSC GS-II 2023, Q5 - direct owner

Verified neutral demand: Discuss the role of Presiding Officers of State legislatures in maintaining order and impartial conduct of business. **10 marks | 150 words**

Model answer

Claim: [FACT] The Speaker/Chairman is the procedural guardian of the State House, but the constitutional design gives the office powers whose legitimacy depends on visible impartiality.

Named evidence: Articles 178-185 establish the offices and removal safeguards. The presiding officer interprets rules, maintains order, recognises members, decides admissibility, uses a casting vote under Article 189 and, in the Assembly, certifies Money Bills under Article 199. Under the Tenth Schedule the Speaker/Chairman adjudicates defection.

Analysis: These powers determine who speaks, which motion proceeds, whether a government survives and whether bicameral scrutiny applies. Continued party membership creates a conflict, especially when defection petitions are delayed.

Judicial control: *Kihoto Hollohan (1992)* subjects tribunal-like defection decisions to review. *Keisham Meghachandra* urged decisions ordinarily within three months and proposed an independent tribunal.

Qualification and verdict: [LIMIT] The tribunal and deadline are not enacted law. Impartiality therefore needs reasoned rulings, equal rules, stronger conventions and transfer of defection adjudication to a neutral body. The chair is indispensable, but neutrality must be institutional rather than merely personal.

Examiner comment: Link each power to impartial business; avoid a generic list of Speaker functions.

Evidence chain: Articles 178-185 -> Articles 189/199 -> Tenth Schedule -> *Kihoto* -> *Keisham* -> reform.

Why this earns marks: It fits 150 words conceptually, combines functions with the neutrality problem and gives targeted reform.

How to improve this answer: For 150 words retain only office, three decisive functions, the partisan-delay mechanism, *Kihoto* plus the 2025 Padi Kaushik Reddy control, and one institutional reform.

Routed Prelims demands - provenance without invented answer letters

Prelims route 1 - 2018 GS-I Q39

Verified neutral demand: Vacation and continuation of the Legislative Assembly Speaker's office.

Doctrinal solution

- [FACT] The Speaker vacates on ceasing to be a member, resignation to the Deputy Speaker, or removal by a majority of all then Assembly members after 14 days' notice.
- [FACT] Dissolution does not immediately vacate the Speaker's office; the Speaker continues until immediately before the first meeting of the new Assembly.

Elimination rule: Reject any statement that dissolution instantly ends the Speaker's tenure.

Prelims route 2 - 2019 GS-I Q53

Verified neutral demand: Governor's address/messages and State legislative procedure.

Doctrinal solution

- [FACT] Article 175 permits address and messages.
- [FACT] Article 176 requires the special address after a general election and at the first session of each year.
- [FACT] Article 208 concerns House rules; Article 212 protects against review of procedural irregularity.

Elimination rule: Distinguish the discretionary Article 175 power from the constitutionally required Article 176 occasions.

Prelims route 3 - 2025 GS-I Q59 - cross-owned

Verified neutral demand: Governor's immunity and immunity for words spoken in a State legislature.

Doctrinal solution

- [FACT] Article 361 protects the Governor in specified ways.
- [FACT] Article 194 speech/vote immunity applies to House members.
- [FACT] The Governor is a legislative component under Article 168 but not a House member.

Elimination rule: Do not transfer member privilege to the Governor.

Original solved Mains practice

Demand decoding: The directive **answer** requires a direct position on "PYQ 2 - UPSC GS-II 2023, Q5 - direct owner", all clauses, a sociological mechanism, historical trajectory, intersectional and regional variation, named Indian evidence, constitutional/institutional boundaries and a qualified conclusion.

Detailed examiner-grade model answer:

Introduction and thesis: The answer must resolve the sociological demand in "PYQ 2 - UPSC GS-II 2023, Q5 - direct owner".

Analytical body:

1. **Claim and named evidence:** Verified neutral demand: Discuss the role of Presiding Officers of State legislatures in maintaining order and impartial conduct of business. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
2. **Claim and named evidence:** Claim: [FACT] The Speaker/Chairman is the procedural guardian of the State House, but the constitutional design gives the office powers whose legitimacy depends on visible impartiality. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
3. **Claim and named evidence:** Judicial control: Kihoto Hollohan (1992) subjects tribunal-like defection decisions to review. Keisham Meghachandra urged decisions ordinarily within three months and proposed an independent tribunal. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated

social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

4. **Claim and named evidence:** Examiner comment: Link each power to impartial business; avoid a generic list of Speaker functions. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

5. **Claim and named evidence:** Evidence chain: Articles 178-185 -> Articles 189/199 -> Tenth Schedule -> Kihoto -> Keisham -> reform. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: The answer must resolve the sociological demand in "PYQ 2 - UPSC GS-II 2023, Q5 - direct owner".

Executable exam-length answer / compression plan: For a 15-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise five points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

M1. "The Legislative Council is a revising convenience, not a revising power." Examine. (10 marks, 150 words)

Model answer

Claim: [FACT] A Council offers a second deliberative stage but lacks the authority to defeat the elected Assembly.

Named evidence: Article 197 permits only about four months' delay on ordinary Bills. Articles 198-199 limit it to 14-day recommendations on Money Bills. It cannot vote grants or remove the ministry, which is responsible only to the Assembly.

Analysis: These limits preserve democratic primacy while allowing reconsideration, expert participation and institutional continuity. Different party control may expose drafting flaws or compel public justification.

Qualification: [LIMIT] Delay without committee capacity can become mere duplication, and graduate/teacher constituencies may no longer represent scarce expertise.

Verdict: The Council is valuable when delay produces evidence-based scrutiny; it is ornamental when it only reproduces party patronage. Retention should therefore be linked to composition reform and measurable legislative work.

Evidence chain: Articles 197-199 -> finance/confidence weakness -> scrutiny value -> reform.

Why this earns marks: It identifies the Council's exact delay, finance and confidence limits while preserving the counter-case that delay can improve scrutiny.

How to improve this answer: In a 150-word answer use one sentence each for Article 197, Articles 198-199, confidence weakness, scrutiny value and conditional verdict; omit the full composition formula.

Demand decoding: The directive **examine** requires a direct position on "M1. "The Legislative Council is a revising convenience, not a revising power." Examine. (10...", all clauses, a sociological mechanism, historical trajectory, intersectional and regional variation, named Indian evidence, constitutional/institutional boundaries and a qualified conclusion.

Detailed examiner-grade model answer:

Introduction and thesis: The answer must resolve the sociological demand in "M1. "The Legislative Council is a revising convenience, not a revising power." Examine. (10 marks, 150 words)".

Analytical body:

1. **Claim and named evidence:** M1. "The Legislative Council is a revising convenience, not a revising power." Examine. (10 marks, 150 words) **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
2. **Claim and named evidence:** Claim: [FACT] A Council offers a second deliberative stage but lacks the authority to defeat the elected Assembly. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
3. **Claim and named evidence:** Analysis: These limits preserve democratic primacy while allowing reconsideration, expert participation and institutional continuity. Different party control may expose drafting flaws or compel public justification. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
4. **Claim and named evidence:** Qualification: [LIMIT] Delay without committee capacity can become mere duplication, and graduate/teacher constituencies may no longer represent scarce expertise. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
5. **Claim and named evidence:** Evidence chain: Articles 197-199 -> finance/confidence weakness -> scrutiny value -> reform. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: The answer must resolve the sociological demand in "M1. "The Legislative Council is a revising convenience, not a revising power." Examine. (10 marks, 150 words)".

Executable exam-length answer / compression plan: For a 10-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise three points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

M2. Should Legislative Councils be abolished? Discuss with constitutional and democratic arguments. (15 marks, 250 words)

Model answer

Claim: [ANALYSIS] Uniform abolition is as crude as automatic retention because Article 169 deliberately makes State bicameralism optional.

For abolition: Councils impose cost, cannot block ordinary or Money Bills, may provide patronage posts and rest partly on dated occupational electorates. Their existence depends on Assembly initiative and ordinary parliamentary law, confirming that they are not federal essentials.

For retention: Permanence preserves memory; local-body, teacher, graduate and expert categories diversify representation; a second chamber can slow hasty majoritarian legislation and strengthen committees. Where the Council has a different majority, it may force reasons and negotiation.

Named evidence: Articles 169 and 171 establish optionality and composition; Articles 197-199 establish subordination. Rajya Sabha comparison shows that weakness is real but does not prove zero deliberative value.

Reform: Modernise electorates, publish nomination criteria, strengthen committee referral, assess legislative outputs and prevent use as rehabilitation for defeated politicians.

Verdict: Use a State-specific retain-reform-abolish test. Councils that add independent scrutiny deserve reform; those that merely delay and reward patronage may legitimately be abolished through Article 169.

Why this earns marks: It tests abolition against constitutional optionality, democratic cost, representational benefit and practicable reform instead of choosing an absolute position.

How to improve this answer: Group the body under abolition, retention and reform; cite Articles 169, 171 and 197-199 once each and finish with measurable State-specific criteria.

Demand decoding: The directive **discuss** requires a direct position on "M2. Should Legislative Councils be abolished? Discuss with constitutional and democratic...", all clauses, a sociological mechanism, historical trajectory, intersectional and regional variation, named Indian evidence, constitutional/institutional boundaries and a qualified conclusion.

Detailed examiner-grade model answer:

Introduction and thesis: The answer must resolve the sociological demand in "M2. Should Legislative Councils be abolished? Discuss with constitutional and democratic arguments. (15 marks, 250 words)".

Analytical body:

1. **Claim and named evidence:** M2. Should Legislative Councils be abolished? Discuss with constitutional and democratic arguments. (15 marks, 250 words) **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
2. **Claim and named evidence:** Claim: [ANALYSIS] Uniform abolition is as crude as automatic retention because Article 169 deliberately makes State bicameralism optional. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
3. **Claim and named evidence:** Named evidence: Articles 169 and 171 establish optionality and composition; Articles 197-199 establish subordination. Rajya Sabha comparison shows that weakness is real but does not prove zero deliberative value. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
4. **Claim and named evidence:** Reform: Modernise electorates, publish nomination criteria, strengthen committee referral, assess legislative outputs and prevent use as rehabilitation for defeated politicians. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
5. **Claim and named evidence:** Verdict: Use a State-specific retain-reform-abolish test. Councils that add independent scrutiny deserve reform; those that merely delay and reward patronage may legitimately be abolished through Article 169. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: The answer must resolve the sociological demand in "M2. Should Legislative Councils be abolished? Discuss with constitutional and democratic arguments. (15 marks, 250 words)".

Executable exam-length answer / compression plan: For a 15-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise five points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

M3. Analyse the constitutional position and impartiality challenge of State Speakers. (15 marks, 250 words)

Model answer

Claim: [FACT] The Speaker is simultaneously procedural judge, constitutional certifier and politically elected member, creating an unavoidable neutrality challenge.

Named evidence: Articles 178-181 establish election, continuity and removal. Article 189 provides the casting vote; Article 199 assigns Money Bill certification; the Tenth Schedule assigns defection adjudication. *Kihoto Hollohan (1992)* subjects this tribunal role to review. *Keisham Meghachandra* urged decisions ordinarily within three months and an independent tribunal. *Subhash Desai* requires recognition of the political party's authorised whip.

Analysis: Agenda control, recognition and delayed disqualification can alter confidence arithmetic. Party membership means the adjudicator may have an institutional stake in the outcome.

Counterpoint: The office needs decisional authority to preserve order, and excessive external intervention may weaken House autonomy.

Reform: Require reasoned orders, equal scheduling rules, transparent recognition decisions, strong removal safeguards and transfer defection disputes to a neutral tribunal.

Verdict: The Speaker should remain master of procedure, but not final partisan judge of government survival. Institutional separation is stronger than appeals to personal restraint.

Why this earns marks: It links the Speaker's procedural, certification and defection powers to the concrete incentive for partisan delay and supplies current judicial control.

How to improve this answer: Add Padi Kaushik Reddy (2025), distinguish House-procedure autonomy from tribunal-like defection adjudication, and rank reforms rather than listing them.

Demand decoding: The directive **analyse** requires a direct position on "M3. Analyse the constitutional position and impartiality challenge of State Speakers. (15...", all clauses, a sociological mechanism, historical trajectory, intersectional and regional variation, named Indian evidence, constitutional/institutional boundaries and a qualified conclusion.

Detailed examiner-grade model answer:

Introduction and thesis: The answer must resolve the sociological demand in "M3. Analyse the constitutional position and impartiality challenge of State Speakers. (15 marks, 250 words)".

Analytical body:

- 1. Claim and named evidence:** M3. Analyse the constitutional position and impartiality challenge of State Speakers. (15 marks, 250 words) **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
- 2. Claim and named evidence:** Claim: [FACT] The Speaker is simultaneously procedural judge, constitutional certifier and politically elected member, creating an unavoidable neutrality challenge. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
- 3. Claim and named evidence:** Analysis: Agenda control, recognition and delayed disqualification can alter confidence arithmetic. Party membership means the adjudicator may have an institutional stake in the outcome. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
- 4. Claim and named evidence:** Counterpoint: The office needs decisional authority to preserve order, and excessive external intervention may weaken House autonomy. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

5. **Claim and named evidence:** Reform: Require reasoned orders, equal scheduling rules, transparent recognition decisions, strong removal safeguards and transfer defection disputes to a neutral tribunal. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: The answer must resolve the sociological demand in "M3. Analyse the constitutional position and impartiality challenge of State Speakers. (15 marks, 250 words)".

Executable exam-length answer / compression plan: For a 15-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise five points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

M4. Compare the legislative powers of a State Assembly and Legislative Council. (15 marks, 250 words)

Model answer

Claim: [FACT] State bicameralism is formally dual but functionally Assembly-dominant.

Ordinary legislation: Either House may ordinarily initiate, but Article 197 allows the Council only three months plus one month of delay; there is no joint sitting.

Finance: Money Bills originate only in the Assembly on recommendation; the Council has 14 days to recommend. Demands for grants are voted only by the Assembly.

Executive accountability: Ministers may participate in either House, but collective responsibility and no-confidence belong only to the Assembly.

Constitutional status: The Assembly can initiate Council creation or abolition under Article 169. Council members neither elect the President nor possess a Rajya Sabha-like federal role.

Counterpoint: The Council is permanent and can debate, question ministers, initiate non-Money Bills and add expert/local representation.

Verdict: The Assembly decides; the Council advises and delays. This asymmetry protects direct democratic control but makes Council legitimacy depend on the quality of scrutiny rather than formal power.

Why this earns marks: It compares both Houses on ordinary law, finance, confidence, elections and continuity using the same parameters.

How to improve this answer: State that a Council-originated Bill rejected by the Assembly ends, distinguish a 207(1) Bill from 207(3) expenditure legislation, and use a compact comparison table in the exam.

Demand decoding: The directive **compare** requires a direct position on "M4. Compare the legislative powers of a State Assembly and Legislative Council. (15 marks,...", all clauses, a sociological mechanism, historical trajectory, intersectional and regional variation, named Indian evidence, constitutional/institutional boundaries and a qualified conclusion.

Detailed examiner-grade model answer:

Introduction and thesis: The answer must resolve the sociological demand in "M4. Compare the legislative powers of a State Assembly and Legislative Council. (15 marks, 250 words)".

Analytical body:

1. **Claim and named evidence:** M4. Compare the legislative powers of a State Assembly and Legislative Council. (15 marks, 250 words) **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
2. **Claim and named evidence:** Claim: [FACT] State bicameralism is formally dual but functionally Assembly-dominant. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism ->

differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

3. **Claim and named evidence:** Ordinary legislation: Either House may ordinarily initiate, but Article 197 allows the Council only three months plus one month of delay; there is no joint sitting. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
4. **Claim and named evidence:** Finance: Money Bills originate only in the Assembly on recommendation; the Council has 14 days to recommend. Demands for grants are voted only by the Assembly. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
5. **Claim and named evidence:** Executive accountability: Ministers may participate in either House, but collective responsibility and no-confidence belong only to the Assembly. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: The answer must resolve the sociological demand in "M4. Compare the legislative powers of a State Assembly and Legislative Council. (15 marks, 250 words)".

Executable exam-length answer / compression plan: For a 15-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise five points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

M5. "State legislative decline strengthens executive federalism at the cost of representative federalism." Analyse. (15 marks, 250 words)

Model answer

Claim: [ANALYSIS] When State Houses sit briefly, scrutinise few Bills and rely on weak committees, policy shifts from elected deliberation toward cabinets, bureaucracy and Union-State executive bargaining.

Mechanism: Rushed Bills reduce opposition and stakeholder input. Weak financial scrutiny lowers departmental accountability. Ordinances and delegated legislation enlarge executive law-making. Limited research support makes members dependent on departments. Intergovernmental decisions then occur through councils, ministries and party leadership rather than State legislatures.

Constitutional evidence: Articles 168-212 create a complete legislative and financial-control structure; Article 164(2) makes the executive responsible to the Assembly. A weak Assembly therefore hollows the responsible-government link even if formal confidence survives.

Qualification: [LIMIT] Executive coordination is necessary in a complex federation, and sitting-day performance varies widely across States.

Reform: Adopt predictable calendars, pre-legislative publication, subject committees, non-partisan research, post-legislative review and tracked government responses.

Verdict: Strong State autonomy requires not only powerful State executives but capable State legislatures. Representative federalism begins inside each State House.

Why this earns marks: It explains a causal shift from weak legislative scrutiny to cabinet and intergovernmental executive dominance, then reconnects reform to responsible government.

How to improve this answer: Use only verified State-specific performance data if available; otherwise retain qualitative mechanisms and compress reforms to calendar, committee, research and follow-up.

Demand decoding: The directive **analyse** requires a direct position on "M5. "State legislative decline strengthens executive federalism at the cost of representative...", all clauses, a sociological mechanism, historical trajectory, intersectional and regional variation, named Indian evidence, constitutional/institutional boundaries and a qualified conclusion.

Detailed examiner-grade model answer:

Introduction and thesis: The answer must resolve the sociological demand in "M5. "State legislative decline strengthens executive federalism at the cost of representative federalism." Analyse. (15 marks, 250 words)".

Analytical body:

1. **Claim and named evidence:** M5. "State legislative decline strengthens executive federalism at the cost of representative federalism." Analyse. (15 marks, 250 words) **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
2. **Claim and named evidence:** Claim: [ANALYSIS] When State Houses sit briefly, scrutinise few Bills and rely on weak committees, policy shifts from elected deliberation toward cabinets, bureaucracy and Union-State executive bargaining. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
3. **Claim and named evidence:** Qualification: [LIMIT] Executive coordination is necessary in a complex federation, and sitting-day performance varies widely across States. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
4. **Claim and named evidence:** Reform: Adopt predictable calendars, pre-legislative publication, subject committees, non-partisan research, post-legislative review and tracked government responses. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
5. **Claim and named evidence:** Verdict: Strong State autonomy requires not only powerful State executives but capable State legislatures. Representative federalism begins inside each State House. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: The answer must resolve the sociological demand in "M5. "State legislative decline strengthens executive federalism at the cost of representative federalism." Analyse. (15 marks, 250 words)".

Executable exam-length answer / compression plan: For a 15-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise five points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

M6. Explain how Articles 200-201 balance State democracy, constitutional scrutiny and Union oversight. (15 marks, 250 words)

Model answer

Claim: [FACT] Articles 200-201 make assent a constitutional checkpoint rather than a second political mandate.

Mechanism: The Governor may assent, withhold, return a non-Money Bill or reserve it. Repassage after direct return normally closes withholding. Reservation is mandatory where High Court powers are endangered. For a reserved Bill, the President may assent, withhold or direct return; repassage does not compel assent.

Analysis: Return enables State reconsideration, mandatory reservation protects judicial structure and presidential consideration provides Union oversight where the Constitution contemplates it. Yet unexplained delay suspends an elected legislature without taking an accountable decision.

Current control: [CURRENT] The November 2025 Article 143 opinion rejects rigid judicial deadlines and automatic deemed assent while permitting limited review of prolonged unexplained inaction.

Qualification: [LIMIT] It is advisory and did not overrule the April judgment. Courts may direct decision, not dictate the option.

Verdict: Federal balance requires prompt, reasoned constitutional choice: scrutiny without pocket veto and review without judicial substitution.

Why this earns marks: It tracks every Article 200-201 option, explains the federal purpose and accurately reconciles the two 2025 decisions.

How to improve this answer: Use a four-branch decision tree, separate mandatory High Court-protection reservation, and say the November opinion qualified timelines/deemed assent without technically overruling April.

Demand decoding: The directive **explain** requires a direct position on "M6. Explain how Articles 200-201 balance State democracy, constitutional scrutiny and Union...", all clauses, a sociological mechanism, historical trajectory, intersectional and regional variation, named Indian evidence, constitutional/institutional boundaries and a qualified conclusion.

Detailed examiner-grade model answer:

Introduction and thesis: The answer must resolve the sociological demand in "M6. Explain how Articles 200-201 balance State democracy, constitutional scrutiny and Union oversight. (15 marks, 250 words)".

Analytical body:

- 1. Claim and named evidence:** M6. Explain how Articles 200-201 balance State democracy, constitutional scrutiny and Union oversight. (15 marks, 250 words) **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
- 2. Claim and named evidence:** Claim: [FACT] Articles 200-201 make assent a constitutional checkpoint rather than a second political mandate. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
- 3. Claim and named evidence:** Current control: [CURRENT] The November 2025 Article 143 opinion rejects rigid judicial deadlines and automatic deemed assent while permitting limited review of prolonged unexplained inaction. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
- 4. Claim and named evidence:** Qualification: [LIMIT] It is advisory and did not overrule the April judgment. Courts may direct decision, not dictate the option. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
- 5. Claim and named evidence:** Verdict: Federal balance requires prompt, reasoned constitutional choice: scrutiny without pocket veto and review without judicial substitution. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: The answer must resolve the sociological demand in "M6. Explain how Articles 200-201 balance State democracy, constitutional scrutiny and Union oversight. (15 marks, 250 words)".

Executable exam-length answer / compression plan: For a 15-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise five points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

M7. Evaluate the case for reforming Legislative Council composition. (20 marks, 250 words)

Model answer

Claim: [ANALYSIS] Article 171's mixed design sought expertise and local representation, but its legitimacy depends on whether twentieth-century categories still serve democratic scrutiny.

Strengths: Local-authority members connect decentralisation to State law-making. Graduate and teacher constituencies may add policy knowledge. MLA-elected and nominated members bring experience and permit representation outside mass elections. STV supports proportionality.

Weaknesses: Graduate status is no longer a narrow expertise proxy; teacher constituencies exclude other public-service professions; electoral rolls and turnout may be weak; nominations may become partisan patronage; MLA-elected seats can rehabilitate defeated politicians.

Institutional context: Because Articles 197-199 make the Council weak, it cannot justify itself through decisional power. It must justify itself through better debate, committees and representation.

Reforms: Update occupational categories after evidence review, strengthen local-body voice, publish objective nomination criteria, require conflict disclosure, invest in research and measure committee/Bill contributions.

Qualification: [LIMIT] Article 171 redesign needs national constitutional/parliamentary action; State-specific experimentation is constrained.

Verdict: Reform should preserve plural representation while replacing inherited status categories with transparent, contemporary expertise and democratic linkage.

Why this earns marks: It evaluates each Article 171 constituency against current representation and scrutiny rather than assuming that expertise automatically justifies indirect franchise.

How to improve this answer: Distinguish reforms possible through parliamentary law from those needing constitutional change, and connect nomination transparency to actual committee outputs.

Demand decoding: The directive **evaluate** requires a direct position on "M7. Evaluate the case for reforming Legislative Council composition. (20 marks, 250 words)", all clauses, a sociological mechanism, historical trajectory, intersectional and regional variation, named Indian evidence, constitutional/institutional boundaries and a qualified conclusion.

Detailed examiner-grade model answer:

Introduction and thesis: The answer must resolve the sociological demand in "M7. Evaluate the case for reforming Legislative Council composition. (20 marks, 250 words)".

Analytical body:

- 1. Claim and named evidence:** M7. Evaluate the case for reforming Legislative Council composition. (20 marks, 250 words) **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
- 2. Claim and named evidence:** Claim: [ANALYSIS] Article 171's mixed design sought expertise and local representation, but its legitimacy depends on whether twentieth-century categories still serve democratic scrutiny. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
- 3. Claim and named evidence:** Institutional context: Because Articles 197-199 make the Council weak, it cannot justify itself through decisional power. It must justify itself through better debate, committees and representation.

Analysis: Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

4. **Claim and named evidence:** Reforms: Update occupational categories after evidence review, strengthen local-body voice, publish objective nomination criteria, require conflict disclosure, invest in research and measure committee/Bill contributions. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

5. **Claim and named evidence:** Qualification: [LIMIT] Article 171 redesign needs national constitutional/parliamentary action; State-specific experimentation is constrained. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: The answer must resolve the sociological demand in "M7. Evaluate the case for reforming Legislative Council composition. (20 marks, 250 words)".

Executable exam-length answer / compression plan: For a 20-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise six to eight points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

M8. Assess how delimitation and women's reservation will reshape State Assemblies. (20 marks, 250 words)

Model answer

Claim: [CURRENT] Delimitation and one-third women's reservation could transform Assembly size, constituency boundaries, party recruitment and federal representation, but neither transformation is operational yet.

Constitutional sequence: The 84th Amendment freeze lasts until publication of the first census after 2026. The 106th Amendment links women's reservation in the Lok Sabha and Assemblies to the first census after commencement and subsequent delimitation. Reservation includes SC/ST sub-reservation and seat rotation.

Potential effects: Fresh boundaries may correct population disparities but create North-South and population-control concerns. Larger or redrawn Assemblies may alter ministry caps, constituency workload and regional balance. Women's reservation can broaden descriptive representation and party pipelines but rotation may weaken constituency continuity.

Current evidence: [CURRENT] The 2026 Bills proposed using the 2011 Census and changing the sequence but failed to become law. Census 2027 publication and delimitation dates remain unknown.

Qualification: [LIMIT] No current seat projection is legally operative, and Councils are outside the reservation.

Verdict: Legitimacy needs transparent criteria, federal consultation, timely census publication and safeguards against penalising successful population stabilisation. Representation reform must expand inclusion without converting demographic change into federal distrust.

Why this earns marks: It gives the constitutional sequence, institutional effects and federal risks while refusing unsupported seat projections.

How to improve this answer: Mention the separate 1 October 2026 census reference date only if space permits; focus the answer on publication, delimitation, activation, rotation and federal consultation.

Demand decoding: The directive **assess** requires a direct position on "M8. Assess how delimitation and women's reservation will reshape State Assemblies. (20 marks,...)", all clauses, a sociological mechanism, historical trajectory, intersectional and regional variation, named Indian evidence, constitutional/institutional boundaries and a qualified conclusion.

Detailed examiner-grade model answer:

Introduction and thesis: The answer must resolve the sociological demand in "M8. Assess how delimitation and women's reservation will reshape State Assemblies. (20 marks, 250 words)".

Analytical body:

1. **Claim and named evidence:** M8. Assess how delimitation and women's reservation will reshape State Assemblies. (20 marks, 250 words) **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
2. **Claim and named evidence:** Claim: [CURRENT] Delimitation and one-third women's reservation could transform Assembly size, constituency boundaries, party recruitment and federal representation, but neither transformation is operational yet. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
3. **Claim and named evidence:** Current evidence: [CURRENT] The 2026 Bills proposed using the 2011 Census and changing the sequence but failed to become law. Census 2027 publication and delimitation dates remain unknown. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
4. **Claim and named evidence:** Qualification: [LIMIT] No current seat projection is legally operative, and Councils are outside the reservation. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
5. **Claim and named evidence:** Why this earns marks: It gives the constitutional sequence, institutional effects and federal risks while refusing unsupported seat projections. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: The answer must resolve the sociological demand in "M8. Assess how delimitation and women's reservation will reshape State Assemblies. (20 marks, 250 words)".

Executable exam-length answer / compression plan: For a 20-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise six to eight points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.